in the forest of Fromeselwood, for the term of his life: the plaintiff by his deed did confirm the estate of the said Sir Henry in Brewcomb-Walk, and granted Staffordale-Walk to him and the heirs males of his body, with a proviso, that if he felled any trees in the premises, that then his estate should cease: and afterwards Sir H. felled trees in Brewcomb-Walk; and it was resolved that these words, "the premises," should extend to it, for the deed had operation in it by way of confirmation, and therefore there *præmissa* should be taken as well for (*g*) *præconfirmata* as *præconcessa*: but should not extend to any other part of the forest, although it was not named before, of which the deed has no operation. And the Chief Justice said, that as to cutting down of trees, grass, corn, and other things annexed to the soil, there are great variances of opinions in our books, not only against whom the action of trespass *vi et armis* shall be brought for recovery of damages, but also concerning the property of them. And therefore (*h*) if one disseises me, and during the disseisin he cuts down the trees, or grass, or the corn growing upon the land, and afterwards I re-enter, I shall have an action of trespass against him *vi et armis*, for the trees, grass, corn, &c. for after my regress, the law, as to the disseisor and his servants, supposes the freehold always continued in me; but if my (*i*) disseisor makes a feoffment in fee, gift in tail, lease for life or years, &c. and afterwards I re-enter, I shall not have trespass *vi et armis* against those who came in by title; for this fiction of the law, that the freehold continued always in me, shall not have relation to make him, who comes in by title, a wrong doer *vi et armis* (Q), for *in fictione juris semper æquitas existit*: but in such case I shall recover all the mean profits against my disseisor, in the same manner as the disseisee in such cases should recover in an assise at the **[51 b]** common law before the statute of Gloucester, cap. 1. damages only against the disseisor. Also it is to be presumed, that the feoffee has given consideration or recompence to the disseisor, and that the lessee has paid rent to him, or other consideration, and therefore in reason the disseisor is to be charged with the whole. The same law, if my disseisor is disseised, and afterwards I re-enter, I shall not have an action of trespass against the second disseisor, because the said fiction of law, as to action, extends only to my disseisor; and if I should punish the second disseisor, he would be twice charged; and therefore I shall recover all the mesne profits against my disseisor, his servants, and others who have committed the trespass by his command, and in his right; and so has the law been often taken upon consideration of all the books in 9 E. 3. 2 a. b. *Peter de Vanlore's case*, 10 H. 6. 14. 19 H. 6. 27. 22 H. 6. 21. 32 H. 6. 32. 33 H. 6. 46. 34 H. 6. 30. 37 H. 6. 35. 38 H. 6. 28. 2 E. 4. 18. 9 E. 4. 39. 11 E. 4. 4. 20 E. 4. 18. 21 E. 4. 5. & 74. 22 E. 4. 21. 6 H. 7. 9. 10 H. 7. 27. 12 H. 7. 25. 13 H. 7. 15 b. And all this is true *quoad actionem: sed quoad proprietatem* the regress of the disseisee revests the property in him, as well for the corn, as for the grass and trees, &c. and as well against the feoffee, lessee, &c. and the second disseisor, as against the disseisor himself; for the act of my disseisor may alter my action, but his act cannot take away my action, property, or right. And in this also there is great variety of opinions in our books; for some, as to the disseisor himself, have taken a difference between things which come by the act and operation of the disseisor himself (as if he sows the land, and afterwards reaps and carries the corn away, the disseisee, after his re-entry, cannot take it; for if he had not sowed the land, no corn had been

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(*g*) Cr. Car. 222. Lit. Rep. 145. 1 Anders. 236.

(*h*) Hob. 98. Kelw. 1 b. 2 Inst. 282, &c. 1 Roll. Rep. 100, 101. 2 Roll. 554. Owen 111, 112.

(*i*) 18 E. 4. 4 a. 1 Anders. 352. Godb. 388. 1 Roll. Rep. 101. Co. Lit. 150 a. Palm. 354.

(Q) According to *Halcome* v. *Rawlins*, Moore 461. S. C. [Cro. Eliz. 640. Owen 112.] Rolle's Ab. Trespass T. pl. 5. Com. Dig. Trespass B 2. there is no difference when he who enters mesne after the disseisin enters by title or by tort. The disseisee by his re-entry is remitted to his first possession, as if he never had been out of possession; and may maintain trespass *vi et armis* against the lessee, donee or feoffee of the disseisor, or against a second disseisor, or a stranger. *Contrà* per Hobart, C.J. *Moore* v. *Hussey*, Hob. 98. *Vid.* Vin. Ab. Trespass R 4. pl. 2.

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